

Criminal Law, Investigation and Procedure Victoria
General Principles of Criminal Law
Mistake
Last Review: 18/04/2023

Mistake

[GPOCL.4500] Introduction

A mistake of fact may be relevant to assigning criminal responsibility in three different ways. A mistake of fact may:

- prevent proof of the requisite mens rea;
- give rise to a defence such as self-defence, provocation, duress or sudden or extraordinary emergency; and
- give rise to a defence to strict liability offences.

A mistake of fact may operate differently in relation to these three areas of law. The most important distinction is that in relation to strict liability offences, a mistaken belief must not only be honestly held but must also be reasonable. In comparison, when assessing the question of mens rea, an honest belief in itself may show that the requisite mens rea was not present.

While as a general rule ignorance of the law is no excuse to criminal responsibility, there have been a number of exceptions developed where a mistake of law may be taken into account. These exceptions will be explored separately.

[GPOCL.4520] Mistake of fact and mens rea

Where mens rea¹ is an element of an offence, the prosecution must prove beyond reasonable doubt that the accused possessed either intention, knowledge or recklessness.² If the accused has an honest but mistaken belief in particular facts, this may indicate an absence of the requisite mens rea and the prosecution will fail to prove its case.³ This is sometimes referred to as a mistaken belief negating intent.⁴

For example, for the crime of rape to be established, it must be proved beyond reasonable doubt that the accused sexually penetrated another and did not reasonably believe that the other person was consenting.⁵ A mistaken belief that the victim was consenting is a simple denial of intent; it is not a separate defence in itself.⁶

Prior to the enactment of the *Crimes Amendment (Sexual Offences and Other Matters) Act 2014*, the honest and mistaken belief held by the accused did not have to be based upon reasonable grounds.⁷ However, reasonableness of the belief could not have been relevant in assessing whether or not the accused actually held the mistaken belief.⁸

The previous requirement that the honest and mistaken belief did not have to be reasonable has been the subject of much criticism particularly with regard to the crime of rape.⁹ Previously, both the Law Reform Commission of Victoria and the Model Criminal Code Officers Committee have stated that the law should not be changed for the following reasons:

- having a subjective fault element which may be negated by a mistaken belief accords with fundamental principles of criminal responsibility;¹⁰
- there are no adequate policy reasons for treating rape differently from other serious criminal offences;¹¹ and
- the meaning of reasonableness is difficult to interpret in the context of sexual assaults.¹²

An accused will be entitled to an acquittal if the prosecution fails to prove beyond reasonable doubt that the accused lacked a reasonable (even if mistaken) belief in certain facts and thus fails to prove that he or she possessed the requisite mens rea of the offence charged. Under [s 36A of the Crimes Act 1958](#), whether or not a person reasonably believes that another person is consenting to an act depends on the circumstances. These circumstances include any steps that the person has taken to find out whether the other person consents to the act. Failure to turn one's mind to whether the other person is consenting is likely to lead to the conclusion that there was no reasonable, positive belief in consent.

Prior to the enactment of the new [s 38](#), where the accused failed to assert a positive belief in consent, his or her awareness that the offence took place in circumstances where it meant consent was not freely given (eg the complainant was severely affected by drugs or alcohol) was sufficient to prove his or her awareness that the complainant was or might not be consenting.¹³

[GPOCL.4540] Mistake of fact and criminal defences

The availability of a defence such as self-defence, duress or sudden or extraordinary emergency may be affected by the belief of the accused even where that belief is a mistaken one as to the

relevant facts. In this sense, a mistake of fact generates a defence without denying any requirement of mens rea.¹⁴

[GPOCL.4560] Self-defence

In relation to self-defence, the English approach appears to be that an honest but mistaken belief in facts which, if true, would justify self-defence is sufficient to form the basis for the defence.¹⁵

This accords with the approach in Victoria under statutory self-defence, which does not require that the accused's belief be based upon reasonable grounds. What the accused believed at the time self-defence was used is relevant when:

- assessing the necessity of their conduct (in response to a threat or attack); and
- assessing the reasonableness of their response.

The accused must have honestly believed that his or her conduct was necessary in self-defence (in response to the perceived threat or attack).¹⁶ Similarly, for self-defence to be available, the accused's conduct must have been a reasonable response to the threat or attack as he or she perceived it.¹⁷ A mistaken belief may therefore be relevant in assessing both of these elements.

An assessment of the accused's belief may require consideration of the accused's personal characteristics which might affect his or her appreciation of the gravity of the threat.¹⁸ Intoxication cannot be considered when the accused has raised the statutory defences except when the intoxication is not self-induced. [Section 322T\(1\) of the Crimes Act 1958](#) states that if any part of an element of a relevant offence, or of a defence to a relevant offence, relies on a person having reasonable grounds for a belief, in determining whether those reasonable grounds existed, regard must be had to the standard of a reasonable person who is not intoxicated.

In *R v Conlon* (1993) 69 A Crim R 92¹⁹ the accused killed two men after they had broken into his farmhouse to steal his marijuana plants and after they had wrestled with him and hit him on the head with a heavy plate. The accused ran into the lounge room where he kept a loaded semi-automatic rifle and then shot both men. The accused subsequently hit one with an axe and slit his throat with a knife. The accused had drunk just under a bottle of whisky in a six-hour period before the event and had been smoking marijuana all afternoon. The trial judge held that the accused's voluntarily induced intoxication could be taken into account in so far as it may have affected his appreciation of the gravity of the threat and the reasonableness of his response to that danger.²⁰ He was accordingly found not guilty of murder of the victim who was shot and killed, but guilty of the manslaughter of the victim who was shot, struck with an axe and stabbed on the basis of diminished responsibility.

At common law, the accused's mistaken belief must be sane and not the result of delusions. In *R v Walsh* (1991) 60 A Crim R 419²¹ the accused argued that he was acting in self-defence when he fired a shotgun at an acquaintance at close range. He argued that he acted in the mistaken belief that he was defending himself from a Korean soldier at the time of the killing. The defence did not rely on the issue of insanity at trial but only self-defence. Justice Slicer ruled on a voir dire that if such evidence was admitted, the prosecution could raise the issue of mental disease. He also ruled that the jury was entitled to consider such evidence in relation to whether or not the accused acted in self-defence:²²

If the jury were to find that the accused has a deluded belief (as, for example, that the person advancing towards him was a North Korean soldier) but that such a delusion did not amount to insanity (as, for example, they were not satisfied on the balance of probabilities that the process of dissociation had occurred), then they should consider the existence of the belief as being one of the circumstances relevant to their consideration of [self-defence]. In such a process they would be required to be satisfied beyond reasonable doubt that the accused was acting in self-defence.

The jury convicted the accused of murder. On appeal, the Full Court of the Supreme Court of Tasmania quashed the conviction for murder and substituted a finding of not guilty on the ground of insanity.²³ The court held that with regard to self-defence, the trial judge had misdirected the jury and that on the basis of the evidence heard on the voir dire, the jury was only entitled to pay regard to the sane beliefs of the accused.

Unlike common law self-defence, statutory self-defence does not require that the accused's belief was based on reasonable grounds. It is a purely subjective test that focuses on the actual belief of the accused, and whether in the circumstances as the accused perceived them the accused's response was reasonable.²⁴

[GPOCL.4580] Duress

At common law, the accused will be able to rely on the defence of duress if the prosecution cannot prove any of the following matters:

- that no-one was threatened with serious harm if the accused failed to commit the crime charged;
- that the circumstances were such that a person of ordinary firmness would not have been likely to yield to the threat in the way the accused did;
- that the threat was not present, and continuing, imminent and impending;
- that the accused did not reasonably apprehend that the threat would be carried out;
- that it was not the threat that induced the accused to commit the crime charged;

- that when free from the duress, the accused voluntarily exposed him or herself to its application;
- that the accused could safely have prevented the execution of the threat.²⁵

This implies that there must have been an actual threat before the defence of duress can apply.

It would seem from the English cases that an honest and reasonable, but mistaken belief may form the basis for a defence of duress. In *R v Graham* [1982] 1 WLR 294; [1982] 1 All ER 801 Lord Lane CJ stated that the correct direction in relation to the accused's belief should be:²⁶

Was [the accused], or may he [or she] have been impelled to act as he [or she] did because, as a result of what he [or she] reasonably believed [the threatener] to have said or done, he [or she] had good cause to fear that if he [or she] did not so act [the threatener] would kill him [or her] ... or cause him [or her] serious physical injury?

There are no Australian cases directly on point, but it may be that Australian courts will opt for an honest and reasonable belief.²⁷

Under [section 322\(2\) of the Crimes Act 1958 \(Vic\)](#) the defence of duress requires the accused to have reasonably believed that a threat was made, that the threat was credible and the conduct was the only way to avoid the harm threatened. A mistake of fact may be relevant to assessing whether the accused's belief was reasonable.

[GPOCL.4600] Sudden or extraordinary emergency

In *R v Loughnan* [1981] VR 443²⁸ Young CJ and King J summarised the elements of the traditional defence of necessity as follows:²⁹

[T]here are three elements involved in the defence of necessity. First, the criminal act or acts must have been done only in order to avoid certain consequences which would have inflicted irreparable evil upon the accused or upon others whom he [or she] was bound to protect.

The [second] element ... [is] ... that the accused must honestly believe on reasonable grounds that he [or she] was placed in a situation of imminent peril. Thus if there is an interval of time between the threat and its expected execution it will be very rarely if ever that a defence of necessity can succeed.

The [third] element of proportion simply means that the acts done to avoid the imminent peril must not be out of proportion to the peril to be avoided. Put in another way, the test is:

would a reasonable [person] in the position of the accused have considered that he [or she] had any alternative to doing what he [or she] did to avoid the peril.

The second element concerns an honest belief on reasonable grounds that a situation of imminent peril has arisen. The situation of imminent peril may not in fact exist. It will be sufficient if the accused honestly and reasonably (but mistakenly) believed that the situation existed.³⁰ This approach may also be relevant to the statutory defence of sudden or extraordinary emergency set out in [s 322R of the *Crimes Act 1958*](#).

[GPOCL.4620] Mistake of fact and strict liability offences

There are many statutory offences which allow for criminal responsibility to be established upon proof of actus reus alone.³¹ However, in most instances, an honest and reasonable mistake in facts which, if they existed, would render the accused's conduct innocent, may afford an excuse. This “defence” may be excluded expressly or by implication. If it is excluded, then the offence is said to be one of “absolute liability”.³² If it still operates, the offence is said to be one of “strict liability”. Absolute liability offences are still rare in Australia and the defence of honest and reasonable mistake of fact is usually available to qualify the literal reading of the statutory offence.³³

While offences of strict liability are usually statutory, the Supreme Court of Victoria has held that the defence of honest and reasonable mistake of fact applied to offences against the common law.³⁴ In that case, however, the court held that the defence is not relevant in relation to manslaughter by negligence. An application for appeal to the High Court on this point was subsequently dismissed.³⁵

The “defence” of honest and reasonable mistake of fact is sometimes referred to as the [Proudman v Dayman \(1941\) 67 CLR 536](#); 15 ALJR 192³⁶ defence after the name of the High Court case which first developed it. In that case, the accused was charged with allowing an unlicensed person to drive a motor vehicle on the road contrary to s 30 of the *Road Traffic Act 1934* (SA). The accused was convicted and appealed to the Supreme Court of South Australia on the basis that she believed that the person who drove her car held a current licence and that she had reasonable grounds for that belief. Justice Cleland set aside the conviction. On further appeal to the Full Court, her conviction was restored. Special leave to appeal to the High Court was refused. In the course of considering the application for special leave, the court accepted that an honest and reasonable mistake may exculpate an accused, but held that this had not been made out on the facts.

Justice Dixon stated:³⁷

It is one thing to deny that a necessary ingredient of the offence is positive knowledge of the fact that the driver holds no subsisting licence. It is another to say that an honest belief founded on reasonable grounds that he [or she] is licensed cannot exculpate a person who permits him [or her] to drive. As a general rule an honest and reasonable belief in a state of facts which, if they existed, could make the defendant's act innocent affords an excuse for doing what would otherwise be an offence.

The “defence” therefore has a number of components:

- there must be a mistake and not mere ignorance;
- the mistake must be one of fact and not law;
- the mistake must be honest and reasonable; and
- the mistake must render the accused's act innocent.

These components will be dealt with in turn.

[GPOCL.4640] Mistake rather than ignorance

There is a distinction made between a positive act of making a mistake and simply not thinking about the matter at all. In *Proudman v Dayman* (1941) 67 CLR 536; 15 ALJR 192³⁸ the High Court refused to grant leave to appeal to the accused on the basis that she had not made a mistake, she had simply not adverted to the question as to whether or not the driver was licensed. A mistake therefore can only be made where there is a positive or affirmative belief present.³⁹

A positive belief is more than a mere absence of knowledge or ignorance. The accused must have turned his or her mind to the relevant facts.⁴⁰ For example, in *Green v Sergeant* [1951] VLR 500⁴¹ the accused was charged with killing native game on a proclaimed sanctuary. He claimed that he did not know that the area was a sanctuary. It was held that there was no defence available because:⁴²

[H]is ignorance of the nature of the area in which he was engaged does not necessarily mean that he had an honest belief in a state of facts which, if they existed, would make his action innocent ... He really had no belief on the subject, for it never entered his head what was the nature of the property where he was.

Inadvertence will therefore not amount to a mistake.⁴³ The belief must also relate to the elements of the particular offence.⁴⁴ In practice, however, there is reason to believe that the courts will take a flexible approach to the distinction between not turning one's mind to the facts and making a mistake.⁴⁵

[GPOCL.4660] Mistake of fact

The mistake must be one of fact and not law.⁴⁶ It is often difficult to make this distinction and there are no clear-cut tests for determining the difference between fact and law. Glanville Williams has stated that:⁴⁷

[A] fact is something perceptible by the senses ... [with the exception of a] state of mind [which] is also a fact, though not directly perceptible by the senses ... while law is an idea in the minds of [individuals].

Thus, questions concerning, for example, the speed at which a car was travelling, or whether the accused stabbed the victim can be considered questions of fact because the answers can be perceived by the senses. On the other hand, questions concerning the effect of a statutory provision, the elements of an offence, or whether a person or thing falls within a statutory description⁴⁸ are said to be matters of law.

If there is some mixture between the two, that is “a mistake as to the existence of a compound event consisting of law and fact”, the mistake will generally be treated as one of fact.⁴⁹ Thus, if a mistaken belief as to the law is flawed by an earlier mistake as to a relevant and important fact, the mistake will be taken to be one of fact.⁵⁰

For example, in *Thomas v The King* (1937) 59 CLR 279⁵¹ the accused was convicted of bigamy. The High Court allowed an appeal and quashed his conviction on the basis that there had been an honest and reasonable mistake of fact. The accused argued that he had believed that he was an unmarried man and therefore free to marry because of a mistaken belief that his former marriage was void. This latter belief was based upon the view that his first wife was not validly divorced from her first husband because of an erroneous belief that there had not been a decree absolute made. This complex mixture of mistaken beliefs was treated as a compound event consisting of law and fact and therefore ultimately one of fact which could provide a defence.

A mistake of law has been held to occur where the accused made a mistake as to the legal effect or legal significance of facts known to him or her.⁵² It has also been held to occur where the accused mistakenly believed that the act in question was lawful because it was unregulated or because the requirements of law had been satisfied.⁵³

Once all the facts are known, incorrect legal advice in relation to them has been taken to be a mistake of law.⁵⁴

[GPOCL.4680] Honest and reasonable mistake

The mistake made by the accused must not only be honestly held, it must also be based upon reasonable grounds.⁵⁵ An honest belief is simply one which is held in fact.⁵⁶

A belief based on reasonable grounds is one which is based upon the accused's "appreciation of primary objective fact which is in reason capable of sustaining the belief".⁵⁷ The question is not whether a reasonable person would have made the mistake, but rather whether the accused's honest belief was based on reasonable grounds.⁵⁸ Reasonableness must be considered by reference to the personal attributes and characteristics of the accused which may have affected his or her appreciation or perception of their circumstances.⁵⁹ These may include age, maturity, gender, ethnicity and physical and intellectual disabilities, but intoxication⁶⁰ and personal values⁶¹ are not relevant. A mistake made carelessly is not a reasonable one.⁶²

[GPOCL.4700] Mistake must render the accused's act innocent

An honest and reasonable but mistaken belief in a set of facts will only exculpate an accused if the truth of the belief would mean that no offence was being committed, making the accused's act innocent.⁶³

The reference to "innocent" in this regard has been taken to mean "not a breach of the criminal law".⁶⁴ For example, in *Bergin v Stack* (1953) 88 CLR 248; 27 ALJR 416⁶⁵ the accused, who was employed by a club, was charged with selling liquor without a licence. The accused had not inquired whether the club had a liquor licence, but simply assumed that it did. In any case, the accused sold the alcohol after 6 pm when no club could be licensed to sell liquor. It was held that the accused's mistake, if it could be called that, would not have rendered the act innocent as selling liquor after 6 pm was still a breach of the criminal law.

[GPOCL.4720] Burden of proof

The prosecution bears the legal burden of disproving a mistake of fact.⁶⁶ The defence bears the evidential burden of providing evidence of an exculpatory mistake of fact or pointing to evidence in the prosecution's case from which such a mistake may be inferred.⁶⁷

Earlier cases seemed to suggest a higher burden be placed on the defence, but this is no longer correct. Justice Dawson stated in *He Kaw Teh v The Queen* (1985) 157 CLR 523; 59 ALJR 620; 15 A Crim R 203; 60 ALR 449:⁶⁸

There is ... no justification since *Woolmington v Director of Public Prosecutions (UK)* [1935] AC 462 for regarding the defence of honest and reasonable mistake as placing any special onus upon an accused who relies upon it. No doubt the burden of providing the necessary foundation in evidence will in most cases fall upon the accused. But it is not inconceivable that during the case for the prosecution sufficient evidence may be elicited by way of cross-examination or otherwise to establish honest and reasonable mistake or to cast sufficient doubt upon the prosecution case to entitle the accused to an acquittal. The governing principle must be that which applies generally in the criminal law. There is no onus upon the accused to prove honest and reasonable mistake upon the balance of probabilities.

[GPOCL.4740] Criminal negligence and due diligence

Occasionally there are statements to the effect that there may be scope for developing a defence of due diligence at common law, independent of a defence of honest and reasonable mistake.⁶⁹ This has the effect of converting a strict liability offence into one of negligence; that is, the accused may tender evidence to demonstrate that he or she took all reasonable care to comply with the law. However, such a defence does not currently exist at common law⁷⁰ although statutory provisions may recognise such a defence.⁷¹

It appears that the defence of honest and reasonable mistake of fact is not equivalent to an absence of negligence or the presence of due diligence⁷² because taking reasonable steps to avoid an event is not the same as making a reasonable mistake. One case which suggests otherwise is that of *Allen v United Carpet Mills Pty Ltd* [1989] VR 323⁷³ a decision of a single judge of the Supreme Court of Victoria. In that case, Nathan J was prepared to accept that a defence of taking all reasonable care and diligence could be subsumed within the concept of honest and reasonable mistake and should be available to offences of strict liability.⁷⁴ It should be noted, however, that this statement was *obiter* as the case concerned an offence which was classified as one of absolute liability.

[GPOCL.4760] Mistake of law

At common law, a mistake of law or ignorance of law will generally not provide an accused with a defence to a crime.⁷⁵ The origins of this doctrine can be found in the Latin maxim *ignorantia juris non excusat* which, it appears, was introduced into the English common law in the 18th century by Sir William Blackstone.⁷⁶ Policy reasons for the doctrine include:

- the impossibility of actually ascertaining whether the accused was actually ignorant of the law and the difficulty in distinguishing between a culpable mistake and a negligent one.⁷⁷
- the admission of the defence would encourage ignorance;⁷⁸

- citizens have a legal duty to acquaint themselves with their legal obligations;⁷⁹ and
- it would allow the substitution of a mistaken view of the law for what the law actually is.⁸⁰

There are, however, numerous exceptions to the doctrine that ignorance of the law is no excuse. The four main exceptions are:

1. knowledge of unlawfulness as an aspect of mens rea;
2. the defence of claim of right;
3. the non-discoverability of laws; and
4. the statutory defence of “with lawful excuse”.⁸¹

These exceptions will be explored in turn.

[GPOCL.4780] Knowledge of unlawfulness as an aspect of mens rea

Some offences require knowledge of unlawfulness as an element of the offence. For example, perjury is an offence which requires not only that the accused swore to that which was not true, but that this was done “wilfully” and “corruptly”.⁸² In this offence, the term wilfully means dishonestly, or at least awareness that the behaviour is unlawful. A mistake of law may thus exculpate an accused in circumstances where knowledge of unlawfulness is an element of the offence.⁸³

[GPOCL.4800] The defence of claim of right

A person who honestly believes him or herself to be entitled to do what he or she is doing may be afforded the defence of an honest claim of right.⁸⁴ The defence is generally relevant to the situation where an accused has stolen, damaged or destroyed property and the mental element of the offence is negated by the existence of an honest claim of right to do the prohibited act.⁸⁵

The belief must be honest, but it need not be reasonable⁸⁶ and what is essential is that the accused believe that there is a claim of right, regardless of whether or not one exists at law.⁸⁷

For example, in *R v Bernhard* [1938] 2 KB 264; [1938] 2 All ER 140⁸⁸ the accused was convicted of demanding money with menaces with intent to steal. The accused, a Hungarian woman, had been the mistress of an Englishman who had agreed to pay her £20 a month for a year after their affair ended. He paid the accused £80 to cover a period of four months, but failed to pay her the balance of £160 on the due date. The accused threatened to tell the Englishman's wife and the press about their affair if he did not pay her. On appeal against conviction, the accused argued that she had consulted a Hungarian lawyer and believed when she had ventured to England and demanded the money she was entitled to the money owing.

Her conviction was quashed on appeal. Justice Charles, in delivering the judgment of the Court of Criminal Appeal stated:⁸⁹

We are ... bound by a series of long decisions ... to hold that ... a person has a claim of right, within the meaning of the section, if he [or she] is honestly asserting what he [or she] believes to be a lawful claim, even though it may be unfounded in law or in fact.

[GPOCL.4820] The non-discoverability of laws

Ignorance or mistake of law may afford an excuse where an offence is committed before publication of the law has been brought to the notice of the accused or in circumstances in which acquisition of knowledge of the existence of law is impossible.

In the old case of *R v Bailey* (1800) Russ & Ry 1; 168 ER 651⁹⁰ the accused was charged under a statute within a few weeks of it having been passed, at which time he was on the high seas and it was therefore physically impossible for the accused to know the law. The accused was found guilty, but was given an absolute pardon. At that time, the only way to correct a trial judge's erroneous ruling was to grant a pardon and it is therefore arguable that the pardon was given on the basis that the accused's conviction was wrong in law.

In *Burns v Nowell* (1880) 5 QBD 444⁹¹ a similar fact situation occurred. In that case, a ship owner sued a naval captain for damages for the illegal seizure of his ship. The latter had been seized under the *Pacific Islanders Protection Act 1872* (UK) which had come into effect during the voyage made by the captain of the ship in question. The Act made it illegal to carry natives without a permit from the Solomon Islands. The natives were used as divers. The Captain found out about the Act after the diver's work was finished and he was taking them back to their island homes. The ship owner failed in his claim for damages and his appeal was dismissed on the basis that the seizure of the ship had been made honestly and in good faith. Whilst it was not necessary to decide the point, the Court of Appeal went on to state that the Act did not apply to the voyage because it was a continuous one and compliance with the legislation would have created "an act of cruelty in all probability as great as any which it was the avowed object of the Act to prevent".⁹²

In *Lim Chin Aik v The Queen* [1963] AC 160; [1963] 2 WLR 42; [1963] 1 All ER 223⁹³ the accused was convicted of the offence of remaining in Singapore as a prohibited person. The Minister of Labour and Welfare had made an order prohibiting the entry of persons into Singapore from the Federation of Malaya. There was no requirement that the order be published. At the accused's trial, there was evidence that he had entered Singapore from the Federation of Malaya after the Minister's order had been made and that he lived in Singapore. There was no evidence that any step had been taken to bring the order either to the attention of the accused nor of anyone else.

The Judicial Committee of the Privy Council heard an appeal from the High Court of Singapore's decision to dismiss the accused's appeal against conviction. The Judicial Committee upheld the accused's appeal, Lord Evershed stating:⁹⁴

[E]ven if the making of the order by the Minister be regarded as an exercise of the legislative as distinct from the executive or administrative function (as they do not concede), the maxim [*ignorantia juris neminem excusat*] cannot apply to such a case as the present where it appears that there is in the State of Singapore no provision for the publication in any form of an order of the kind made in the present case or any other provision designed to enable a man [or woman] by appropriate inquiry to find out what “the law” is.

The Judicial Committee therefore rejected the maxim that ignorance of the law is no excuse on the ground that non-publication of the order excluded the operation of the maxim.

In Victoria, statutory rules and regulations take effect on and from the date the statutory rule was made, unless a contrary intention is expressed by the legislature.⁹⁵ If an ordinance satisfies the necessary notification and publication requirements, it appears that the non-availability of the ordinance from the government printer or other appointed source will not postpone the operation of the statutory rule.⁹⁶

[GPOCL.4840] The statutory defence of with lawful excuse

An accused may be afforded a defence if he or she mistakenly believes that there was a lawful excuse to do what he or she did. This defence only applies to statutory crimes which require that the criminal act be performed “without lawful excuse”.

In *R v Smith* [1974] QB 354; [1974] 2 WLR 20; [1974] 1 All ER 632⁹⁷ the accused was charged with destroying property without lawful excuse. The Court of Appeal held that the accused's mistaken belief that he had a lawful excuse to destroy the property was a good defence.

[GPOCL.4860] Reliance on advice as to the law from those in authority

Reliance upon legal advice is generally not a defence to a criminal charge. For example, in *R v Wheat* [1921] 2 KB 119⁹⁸ the accused was convicted of bigamy despite receiving advice from counsel that his previous marriage was void. Similarly, in *Crichton v Victorian Dairies Ltd* [1965] VR 49⁹⁹ a company was convicted under the *Companies Act 1961* for failing to appoint an auditor in circumstances in which the company had been advised by counsel that there was no duty to appoint.¹⁰⁰

The main rationale for not allowing a defence of mistake of law due to incorrect legal advice appears to be that a legal practitioner does not warrant the correctness of his or her advice and a client is free to reject advice and seek a second opinion. Another, more cynical rationale, is that if a defence of mistake of law based on incorrect legal advice were available, large corporations could “shop around” for a legal practitioner and exercise undue influence in order to obtain favourable advice.

If, however, the crime charged requires proof of some particular state of mind, evidence of legal advice may be relevant to show that the accused did not possess that state of mind.¹⁰¹ For example, in *R v Dodsworth* (1837) 8 Car & P 218; 173 ER 467¹⁰² the accused was charged with falsely stating electoral qualifications. He claimed that he had acted honestly because he had acted on the advice of the election committee. Lord Denman held that a person should not be convicted if he or she had acted bona fide and had “been guided in his [or her] conduct in a matter of law by persons who are conversant with law”.¹⁰³

In *Ostrowski v Palmer* (2004) 218 CLR 493; 78 ALJR 957; 206 ALR 422; [2004] HCA 30¹⁰⁴ the High Court has clarified that reliance on official advice, like reliance on legal advice, does not convert a mistake of law into one of fact and affords no defence.

Footnotes

- 1 For the definition of mens rea see [GPOCL.740].
- 2 *He Kaw Teh v The Queen* (1985) 157 CLR 523; 59 ALJR 620; 15 A Crim R 203; 60 ALR 449.
- 3 *Director of Public Prosecutions (UK) v Morgan* [1976] AC 182; [1975] 2 WLR 913; [1975] 2 All ER 347; *He Kaw Teh v The Queen* (1985) 157 CLR 523; 59 ALJR 620; 15 A Crim R 203; 60 ALR 449 at 253 (A Crim R), per Dawson J; *R v McEwan* [1979] 2 NSWLR 926; (1979) 1 A Crim R 242.
- 4 *R v McEwan* [1979] 2 NSWLR 926; (1979) 1 A Crim R 242.
- 5 *Crimes Act 1958*, s 38(1).
- 6 *R v Smith* [1974] QB 354; [1974] 2 WLR 20; [1974] 1 All ER 632 at 360 (QB).
- 7 *Director of Public Prosecutions (UK) v Morgan* [1976] AC 182; [1975] 2 WLR 913; [1975] 2 All ER 347; *He Kaw Teh v The Queen* (1985) 157 CLR 523; 59 ALJR 620; 15 A Crim R 203; 60 ALR 449 at 253 (A Crim R), per Dawson J; *R v McEwan* [1979] 2 NSWLR 926; (1979) 1 A Crim R 242.

- 8 *Director of Public Prosecutions (UK) v Morgan* [1976] AC 182; [1975] 2 WLR 913; [1975] 2 All ER 347; *R v Saragozza* [1984] VR 187; (1983) 9 A Crim R 185; *Crimes Act 1958*, s 37(1)(c).
- 9 For an outline of such criticisms, see Model Criminal Code Officers' Committee, *Model Criminal Code, Chapter 5: Sexual Offences Against the Person, Discussion Paper* November 1996, pp 71–73; Law Reform Commission of Victoria, *Report No 43, Rape: Reform of Law and Procedure* (VGPS, September 1991), pp 12–17. See also Temkin J, *Rape and the Legal Process* (Sweet & Maxwell, 1987), p 84; Temkin J, “The Limits of Reckless Rape” [1983] *Criminal Law Review* 5 at 15–16; Pickard T, “Culpable Mistakes and Rape: Relating Mens Rea to the Crime” (1980) *University of Toronto Law Journal* 75; Faulkner J, “Mens Rea in Rape: Morgan and the Inadequacy of Subjectivism” (1991) 18 *MULR* 60.
- 10 Model Criminal Code Officers' Committee, *Model Criminal Code, Chapter 5: Sexual Offences Against the Person, Discussion Paper*, November 1996, p 67; Law Reform Commission of Victoria, *Report No 43, Rape: Reform of Law and Procedure* (VGPS, September 1991), pp 10–12.
- 11 Law Reform Commission of Victoria, *Report No 43, Rape: Reform of Law and Procedure* (VGPS, September 1991), pp 12–17.
- 12 Model Criminal Code Officers' Committee, *Model Criminal Code, Chapter 5: Sexual Offences Against the Person, Discussion Paper*, (November 1996, pp 67–68; Law Reform Commission of Victoria, *Report No 43, Rape: Reform of Law and Procedure* (VGPS, September 1991), pp 17–18.
- 13 *R v Getachew* (2012) 86 ALJR 397; 286 ALR 196; [2012] HCA 10.
- 14 See Fairall PA and Barrett, *Criminal Defences in Australia* (5th ed, LexisNexis Butterworths, 2017), p 73-4.
- 15 *Beckford v The Queen* [1988] AC 130; [1987] 3 WLR 611; [1987] 3 All ER 425 at 620 (WLR). For a discussion of the elements of self-defence see [GPOCL.3000]ff.
- 16 *Zecevic v Director of Public Prosecutions* (1987) 162 CLR 645; 61 ALJR 375; 25 A Crim R 163; 71 ALR 641 at 650–651 (CLR), per Mason CJ; at 656–659, per Wilson, Dawson and Toohey JJ, at 672–674, per Deane J; at 683, per Gaudron J; *Viro v The Queen* (1978) 141 CLR 88; 52 ALJR 418; 18 ALR 257 at 146 (CLR), per Mason J.
- 17 *Zecevic v Director of Public Prosecutions* (1987) 162 CLR 645; 61 ALJR 375; 25 A Crim R 163; 71 ALR 641 at 654 (CLR), per Mason CJ; at 661, per Wilson, Dawson and Toohey JJ; at 666, per Brennan J; at 682, per Deane J; at 683, per Gaudron J; *R v Dziduch* (1990) 47 A Crim R 378.
- 18 *R v Conlon* (1993) 69 A Crim R 92 at 99.

- 19 *R v Conlon* (1993) 69 A Crim R 92.
- 20 *R v Conlon* (1993) 69 A Crim R 92 at 101.
- 21 *R v Walsh* (1991) 60 A Crim R 419.
- 22 *R v Walsh* (1991) 60 A Crim R 419 at 428.
- 23 *Walsh v The Queen* (unreported, TASSC, 19 August 1993).
- 24 *Crimes Act 1958*, s 322K(2). See also [GPOCL3000]ff.
- 25 *R v Hurley* [1967] VR 526; see also *R v Darrington* [1980] VR 353; (1979) 1 A Crim R 124; *R v Dawson* [1978] VR 536; *R v Emery* (1978) 18 A Crim R 49; *R v Zaharias* (2001) 122 A Crim R 586; [2001] VSCA 168; *R v Japaljarri* (2002) 134 A Crim R 261; [2002] VSCA 154. For a discussion of the elements of duress see [GPOCL.2020] ff.
- 26 *R v Graham* [1982] 1 WLR 294; [1982] 1 All ER 801 at 300 (WLR). Approved in *R v Howe* [1987] AC 417; 1 All ER 771; *R v Brandford* [2017] 2 All ER 43.
- 27 See Fairall PA and Barrett, *Criminal Defences in Australia* (5th ed, LexisNexis Butterworths, 2017), pp 227ff; Yeo S, *Compulsion in the Criminal Law* (LBC, 1990), p 229.
- 28 *R v Loughnan* [1981] VR 443. For a discussion of the elements of necessity see [GPOCL.2320] ff.
- 29 *R v Loughnan* [1981] VR 443 at 448.
- 30 *R v Loughnan* [1981] VR 443 at 448, per Young CJ and King J; *Limbo v Little* (1989) 98 FLR 421; 45 A Crim R 61; 65 NTR 19 at 88 (A Crim R), per Martin J; *R v Conway* [1989] QB 290; [1988] 3 WLR 1238; [1988] 3 All ER 1025 at 1244 (WLR).
- 31 See Bronitt S and McSherry B, *Principles of Criminal Law* (4th ed, Lawbook Co, 2017), p 224ff.
- 32 See [GPOCL.860].
- 33 *Hawthorne (Department of Health) v Morcam Pty Ltd* (1992) 29 NSWLR 120; 65 A Crim R 227; *Pollard v Director of Public Prosecutions (Cth)* (1992) 28 NSWLR 659; 8 ACSR 813; 63 A Crim R 383; 10 ACLC 1.511; *R v Wampfler* (1987) 11 NSWLR 541; 34 A Crim R 218 at 547 (NSWLR); *Strathfield MC v Elvy* (1992) 25 NSWLR 745; 58 A Crim R 352; *Given v CV Holland (Holdings) Pty Ltd* (1977) 15 ALR 439; *Von Lieven v Stewart* (1990) 21 NSWLR 52; 3 ACSR 118; 8 ACLC 1,014; *Binskin v Watson* (1990) 48 A Crim R 33; *Darwin Bakery Pty Ltd v Sully* (1981) 51 FLR 90; 36 ALR 371; *Universal Telecasters (Qld) Ltd v Guthrie* (1978) 32 FLR 360; 18 ALR 531; *Schmid v Keith Quinn Motor Co Pty Ltd* (1987) 47 SASR 96; 29 A Crim R 330; *Cooper v ICI Australia Operations Pty Ltd* (1987) 31 A Crim R 267; 64 LGRA 58; *Browning v Barrett* [1987] Tas R 122; (1987) 31 A Crim R 222; *Minogue v Briggs* (1987) 31 A Crim R 407.
- 34 *R v Osip* (2000) 2 VR 595; 116 A Crim R 578; [2000] VSCA 237.

- 35 *Osip v The Queen* (2001) 22(9) Leg Rep C14.
- 36 *Proudman v Dayman* (1941) 67 CLR 536; 15 ALJR 192.
- 37 *Proudman v Dayman* (1941) 67 CLR 536; 15 ALJR 192 at 540–541 (CLR).
- 38 *Proudman v Dayman* (1941) 67 CLR 536; 15 ALJR 192.
- 39 *State Rail Authority (NSW) v Hunter Water Board* (1992) 28 NSWLR 721; 65 A
Crim R 101 at 105 (A Crim R), per Gleeson CJ; *Von Lieven v Stewart* (1990) 21
NSWLR 52; 3 ACSR 118; 8 ACLC 1,014 at 66–67 (NSWLR), per Handley JA;
Bergin v Stack (1953) 88 CLR 248; 27 ALJR 416 at 261 (CLR), per Fullagar J;
Maher v Musson (1934) 52 CLR 100.
- 40 *Gherashe v Boase* [1959] VR 1; *Bergin v Stack* (1953) 88 CLR 248; 27 ALJR
416.
- 41 *Green v Sergeant* [1951] VLR 500.
- 42 *Green v Sergeant* [1951] VLR 500 at 504–505.
- 43 *Von Lieven v Stewart* (1990) 21 NSWLR 52; 3 ACSR 118; 8 ACLC 1,014 at 66
(NSWLR), per Handley JA.
- 44 *State Rail Authority (NSW) v Hunter Water Board* (1992) 28 NSWLR 721; 65 A
Crim R 101 at 105 (A Crim R), per Gleeson CJ.
- 45 See, for example, *Mayer v Marchant* (1973) 5 SASR 567.
- 46 *He Kaw Teh v The Queen* (1985) 157 CLR 523; 59 ALJR 620; 15 A Crim R
203; 60 ALR 449; *Iannella v French* (1968) 119 CLR 84; 41 ALJR 389 at 114–
115 (CLR), per Windeyer J; *Strathfield MC v Elvy* (1992) 25 NSWLR 745; 58 A
Crim R 352; *Von Lieven v Stewart* (1990) 21 NSWLR 52; 3 ACSR 118; 8 ACLC
1,014; *Griffin v Marsh* (1994) 34 NSWLR 104; 28 ATR 355; 122 ALR 552; 94
ATC 4354; *State Rail Authority (NSW) v Hunter Water Board* (1992) 28 NSWLR
721; 65 A Crim R 101.
- 47 Williams G, *Criminal Law: The General Part* (2nd ed, Stevens, 1961), p 287.
- 48 *Iannella v French* (1968) 119 CLR 84; 41 ALJR 389 at 114 (CLR), per Windeyer
J.
- 49 *R v Thomas* (1937) 59 CLR 279 at 306, per Dixon J.
- 50 *Griffin v Marsh* (1994) 34 NSWLR 104; 28 ATR 355; 122 ALR 552; 94 ATC
4354 at 118 (NSWLR), per Smart J.
- 51 *Thomas v The King* (1937) 59 CLR 279.
- 52 *Pollard v Director of Public Prosecutions (Cth)* (1992) 28 NSWLR 659; 8
ACSR 813; 63 A Crim R 383; 10 ACLC 1,511 at 678 (NSWLR), per Abadee
J; *Strathfield MC v Elvy* (1992) 25 NSWLR 745; 58 A Crim R 352; *Khammash
v Rowbottom* (1989) 51 SASR 172; 9 MVR 428; *Griffin v Marsh* (1994) 34
NSWLR 104; 28 ATR 355; 122 ALR 552; 94 ATC 4354.
- 53 *Von Lieven v Stewart* (1990) 21 NSWLR 52; 3 ACSR 118; 8 ACLC 1,014;
Ostrowski v Palmer (2004) 218 CLR 493; 206 ALR 422.

- 54 *Pollard v Director of Public Prosecutions (Cth)* (1992) 28 NSWLR 659; 8 ACSR 813; 63 A Crim R 383; 10 ACLC 1.511; *Crichton v Victorian Dairies Ltd* [1965] VR 49.
- 55 *Proudman v Dayman* (1941) 67 CLR 536; 15 ALJR 192; *He Kaw Teh v The Queen* (1985) 157 CLR 523; 59 ALJR 620; 15 A Crim R 203; 60 ALR 449; *Gherashe v Boase* [1959] VR 1; *Handmer v Taylor* [1971] VR 308.
- 56 *GJ Coles & Co Ltd v Goldsworthy* [1985] WAR 183; (1985) 57 LGRA 122 at 187 (WAR), per Burt CJ.
- 57 *GJ Coles & Co Ltd v Goldsworthy* [1985] WAR 183; (1985) 57 LGRA 122 at 187–188 (WAR), per Burt CJ; *Gibbon v Fitzmaurice* [1986] Tas R 137; (1986) 23 A Crim R 12 at 154 (Tas R), per Nettlefold J.
- 58 *R v Wilson* [2009] 1 Qd R 476; (2008) 189 A Crim R 511; [2008] QCA 349 at [20]; *R v Rope* [2010] QCA 194.
- 59 *Aubertin v Western Australia* (2006) 33 WAR 87; 167 A Crim R 1; [2006] WASCA 229 at [43].
- 60 *Aubertin v Western Australia* (2006) 33 WAR 87; 167 A Crim R 1; [2006] WASCA 229 at [44]; *R v Mrzljak* [2005] 1 Qd R 308; (2004) 152 A Crim R 315; [2004] QCA 420 at [21], [55]; *Prazmo v Western Australia* [2009] WASCA 25 at [21].
- 61 *Aubertin v Western Australia* (2006) 33 WAR 87; 167 A Crim R 1; [2006] WASCA 229 at [46].
- 62 *GJ Coles & Co Ltd v Goldsworthy* [1985] WAR 183; (1985) 57 LGRA 122 at 188 (WAR), per Burt CJ.
- 63 *Proudman v Dayman* (1941) 67 CLR 536; 15 ALJR 192 at 540 (CLR), per Dixon J; *Bergin v Stack* (1953) 88 CLR 248; 27 ALJR 416 at 262 (CLR), per Fullagar J; *CTM v The Queen* (2008) 236 CLR 440; 82 ALJR 978; 185 A Crim R 188; 247 ALR 1; [2008] HCA 25 at [8].
- 64 *Bergin v Stack* (1953) 88 CLR 248; 27 ALJR 416; *R v Reynhoudt* (1962) 107 CLR 381; 36 ALJR 26 at 389 (CLR), per Kitto J; *R v Iannazzone* [1983] 1 VR 649; (1980) 3 A Crim R 246 at 655 (VR), per Brooking J.
- 65 *Bergin v Stack* (1953) 88 CLR 248; 27 ALJR 416. See also *Mayer v Marchant* (1973) 5 SASR 567; *Director of Public Prosecutions v Bone* (2005) 64 NSWLR 215.
- 66 *Proudman v Dayman* (1941) 67 CLR 536; 15 ALJR 192.
- 67 *He Kaw Teh v The Queen* (1985) 157 CLR 523; 59 ALJR 620; 15 A Crim R 203; 60 ALR 449.
- 68 *He Kaw Teh v The Queen* (1985) 157 CLR 523; 59 ALJR 620; 15 A Crim R 203; 60 ALR 449 at 649 (ALJR).
- 69 For example, *Australian Iron & Steel Pty Ltd v Environment Protection Authority (NSW)* (1992) 29 NSWLR 497; 66 A Crim R 134 at 135 (A Crim R), per Badgery-

Parker J; *Environment Protection Authority (NSW) v Unomedical Pty Ltd (No 3)* (2010) 79 NSWLR 236; [2010] NSWLEC 198.

70 *Australian Iron & Steel Pty Ltd v Environment Protection Authority (NSW)* (1992) 29 NSWLR 497; 66 A Crim R 134 at 147 (A Crim R), per Abadee J.

71 See, for example, *Environment Protection Act 1970*, ss 350(3); *Criminal Code Act 1995* (Cth) s 12.5(1).

72 *Australian Iron & Steel Pty Ltd v Environment Protection Authority (NSW)* (1992) 29 NSWLR 497; 66 A Crim R 134 at 509–510 (NSWLR), per Adabee J. The court did not follow the Canadian approach set out in *R v City of Sault Ste Marie* (1978) 85 DLR (3d) 161 whereby a defence of honest and reasonable mistake would be established if the accused reasonably believed in a mistaken set of facts which if true would render the act innocent if he or she took all reasonable steps to avoid the particular event.

73 *Allen v United Carpet Mills Pty Ltd* [1989] VR 323.

74 *Allen v United Carpet Mills Pty Ltd* [1989] VR 323 at 327.

75 *R v Coote* (1873) LR 4 PC 599; *Iannella v French* (1968) 119 CLR 84; 41 ALJR 389; *Pollard v Director of Public Prosecutions (Cth)* (1992) 28 NSWLR 659; 8 ACSR 813; 63 A Crim R 383; 10 ACLC 1.511; *Khammash v Rowbottom* (1989) 51 SASR 172; 9 MVR 428; *Ostrowski v Palmer* (2004) 218 CLR 493.

76 *Blackstone's Commentaries* (1773), Vol 4, p 27.

77 Austin J, *Jurisprudence* (1861), p 498. See also Ashworth A, *Positive Obligations in Criminal Law* (Hart Publishing, 2013), pp 82-3.

78 Holmes OW, *The Common Law* (1881), p 48.

79 Ashworth A, *Principles of Criminal Law* (4th ed, OUP, 2003), p 2239. The duties of citizenship rationale have been criticised, see Husack D, “Ignorance of Law and Duties of Citizenship” (1994) 14 Legal Studies 105.

80 Hall J, *General Principles of Criminal Law* (2nd ed, The Bobbs-Merrill Co Inc, 1960), pp 382 ff. For further discussion of the policy rationales for excluding such a defence, see Amirthalingam K, “Mistake of Law: A Criminal Offence or a Reasonable Defence?” (1994) 18 Crim LJ 271; Ashworth A, “Excusable Mistake of Law” [1974] Criminal Law Review 652; Brett P, *Mistake of Law as a Criminal Defence* (1966) 5 MULR 179; Brookbanks WJ, “Recent Developments in the Doctrine of Mistake of Law” (1987) 11 Crim LJ 195.

81 Other exceptions which are in the process of development can be found in Amirthalingam K, “Mistake of Law: A Criminal Offence or a Reasonable Defence?” (1994) 18 Crim LJ 271 at 276.

82 *R v Smith* (1681) 2 Show KB 165. Section 314(1) of the *Crimes Act 1958* creates a statutory offence adopting the common law formulation.

83 *Jackson v Butterworth* [1946] VLR 330; (1945) 8 ATD 214.

- 84 *R v Cooper* (1914) 14 SR (NSW) 426; 31 WN (NSW) 164; *R v Nundah* (1916) 16 SR (NSW) 482; 33 WN (NSW) 196; *R v Pollard* [1962] QWN 13 at 29, per Gibbs J. See Brookbanks W, “Colour of Right and Offences of Dishonesty” (1987) 11 Crim LJ 153.
- 85 *R v Feely* [1973] QB 530; [1973] 2 WLR 201; [1973] 1 All ER 341; *R v Ghosh* [1982] 1 QB 1053; [1982] 3 WLR 110; [1982] 2 All ER 689; *R v Salvo* [1980] VR 401; (1979) 5 A Crim R 1; *R v Love* (1989) 17 NSWLR 608; 44 A Crim R 416; *Walden v Hensler* (1987) 163 CLR 561; 61 ALJR 646; 29 A Crim R 85; 75 ALR 173; *R v Sanders* (1991) 57 SASR 102; *Lenard v The Queen* (1992) 57 SASR 164; 58 A Crim R 123; *Heywood v Canty* (unreported, VSC, Harper J, 21 January 1993). See also *Crimes Act 1958*, s 73(2).
- 86 *R v Bernhard* [1938] 2 KB 264; [1938] 2 All ER 140; *R v Love* (1989) 17 NSWLR 608; 44 A Crim R 416.
- 87 *R v Bernhard* [1938] 2 KB 264; [1938] 2 All ER 140.
- 88 *R v Bernhard* [1938] 2 KB 264; [1938] 2 All ER 140.
- 89 *R v Bernhard* [1938] 2 KB 264; [1938] 2 All ER 140 at 270 (KB).
- 90 *R v Bailey* (1800) Russ & Ry 1; 168 ER 651.
- 91 *Burns v Nowell* (1880) 5 QBD 444.
- 92 *Burns v Nowell* (1880) 5 QBD 444 at 455.
- 93 *Lim Chin Aik v The Queen* [1963] AC 160; [1963] 2 WLR 42; [1963] 1 All ER 223.
- 94 *Lim Chin Aik v The Queen* [1963] AC 160; [1963] 2 WLR 42; [1963] 1 All ER 223 at 171 (AC).
- 95 *Subordinate Legislation Act 1994*, s 16.
- 96 *Sheer Metalcraft Ltd* [1954] 1 QB 586.
- 97 *R v Smith* [1974] QB 354; [1974] 2 WLR 20; [1974] 1 All ER 632. This case could also be analysed as standing for the proposition that a mistaken belief that property is one's own negates mens rea.
- 98 *R v Wheat* [1921] 2 KB 119.
- 99 *Crichton v Victorian Dairies Ltd* [1965] VR 49.
- 100 See also *Cooper v Simmons* (1862) 7 H & N 707; 158 ER 654; *Olsen v Grain Sorghum Marketing Board* [1962] Qd R 580.
- 101 *McL v Flavel* (1985) 45 SASR 69; 21 A Crim R 267.
- 102 *R v Dodsworth* (1837) 8 Car & P 218; 173 ER 467.
- 103 *R v Dodsworth* (1837) 8 Car & P 218; 173 ER 467 at 469 (ER).
- 104 *Ostrowski v Palmer* (2004) 218 CLR 493; 78 ALJR 957; 206 ALR 422; [2004] HCA 30.